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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF WASHINGTON

SPOKANE DIVISION

MELISSA PLENTY,
Plaintiff,
v.
HILTON GRAND VACATIONS INC.,
Defendant.

Case No. 2:26-cv-00258-SAB

**PLAINTIFF'S CLASS ACTION COMPLAINT**

**DEMAND FOR JURY TRIAL**

1. Plaintiff Melissa Plenty ("Plenty"), individually and on behalf of all others similarly situated, brings this class action against Defendant Hilton Grand Vacations Inc. ("Hilton Grand") and alleges as follows.

# INTRODUCTION

2. "Being deluged with 'spam' telemarketing phone calls or text messages is the bane of modern life. In a world where countless companies try to capture our attention, it can be exasperating to receive yet another ping on a smartphone." *Borden v. eFinancial, LLC*, 53 F.4th 1230, 1231 (9th Cir. 2022).

3. Defendant Hilton Grand Vacations Inc. ("Hilton Grand") has contributed to this barrage of telephone spam by illegally calling Plaintiff Melissa

Plenty ("Plenty") and thousands of others like her.

4. Despite placing her number on the National Do Not Call Registry ("DNCR") and requesting that the calls stop, Hilton Grand continued to call Plenty in an attempt to market its hotel rooms and services.

5. Plenty wants these calls to stop. Plenty brings this action individually, and on behalf of putative class members, to seek injunctive relief and damages.

## JURISDICTION AND VENUE

6. This Court has original subject matter jurisdiction pursuant to 28 U.S.C. § 1331 because this action arises under the TCPA, 47 U.S.C § 227, which is a federal statute.

7. Venue is proper in this District pursuant to 28 U.S.C. § 1391 because a significant portion of the facts giving rise to this lawsuit and the wrongful conduct occurred in this District.

8. This Court has personal jurisdiction over Defendant Hilton Grand Vacations Inc. because the calls at issue arose from Hilton Grand's conduct in Washington. Hilton Grand had previously obtained Plenty's information and knew or likely knew that Plenty was located in Washington and would receive the calls at issue in Washington. Furthermore, Plenty's phone number starts with 509, which is an area code for eastern portions of Washington. Hilton Grand therefore knew that its' calls were targeted at, and likely to be received in, Washington. Lastly, Hilton Grand is a global operation and directs its calls into all 50 states,

and therefore knew many of its calls would be received in Washington.

# PARTIES

9. Plaintiff Melissa Plenty is a resident of Spokane, Washington.

10. Defendant Hilton Grand Vacations Inc. is a Delaware Corporation with its principal place of business in Orlando, Florida.

# FACTUAL ALLEGATIONS

11. Hilton Grand offers vacation ownership and timeshares to participating members. To advertise these timeshares, Hilton Grand offers discounted rooms with the condition that the customer attend a "Hilton Grand Vacations sales presentation."

12. In February 2025, Plenty used her number, 509-701-5723, to call Hilton and reserve rooms in Denver, Colorado for May 2025.

13. Plenty completed her reservation with Hilton but the agent she completed the reservation with requested she stay on the line momentarily for a special promotion. Plenty was then transferred to a different phone line. The agent on the transferred line told Plenty that Hilton Grand had a special deal for her. Plenty could book additional rooms for a future timeslot at a significant price reduction if she selected a location and paid for the rooms while on the phone.

14. Plenty selected a location and paid the reduced price.

15. Once payment was completed, the agent informed her that the deal was only valid if she attended a class conducted by Hilton Grand that would last

"no more than two hours." When Plenty stated she did not want to attend this class, she was told there were no refunds and she would be required to attend the class or forfeit her payment and rooms. Accordingly, Plenty planned to attend the class.

16. However, at the end of 2025, Plenty's cancer returned after a period of remission.

17. Plenty called Hilton in December 2025 to attempt to cancel her reservation. She was once again told that a refund was not an option regardless of her medical status. Plenty would need to attend the class and confirm her reservation or forfeit the prepayment made. Plenty confirmed she wanted to cancel the reservation as she could no longer travel following her medical diagnosis.

18. Despite this interaction, Plenty began to receive phone calls from Hilton Grand on February 10, 2026 at 2:26 am UTC, encouraging her to make reservations within the allotted timeslots.

19. However, Hilton Grand continued to call her, as follows: (i) call from 689-358-1412 on Feb. 11, 2026, at 2:01 am UTC; (ii) call from 689-358-1357 on Feb. 11, 2026, at 5:37 pm UTC; (iii) call from 689-358-1476 on Feb. 13, 2026, at 5:41 pm UTC; (iv) call from 702-347-2062 on Feb. 14, 2026, at 2:00 am UTC; (v) call from 407-610-9592 on Feb. 16, 2026, at 9:56 pm UTC; (vi) call from 407-610-6049 on Feb. 17, 2026, at 5:25 pm UTC; (vii) call from

407-309-9593 on Feb. 18, 2026, at 5:30 pm UTC. Plenty explained her situation once again and told Hilton Grand to stop calling her. Hilton Grand kept calling: (viii) call from 689-358-1587 on Feb 19, 2026, at 1:32 am UTC; (ix) call from 407-309-3684 on Feb 19, 2026, at 5:14 pm UTC; (x) call from 689-358-1623 on Feb. 20, 2026, at 1:19 am UTC; (xi) call from 407-610-9208 on Feb. 23, 2026, at 8:51 pm UTC; (xii) call from 689-358-1475 on Feb. 24, 2026 at 5:29 pm UTC; and (xiii) call from 407-610-1935 on Feb. 25, 2026, at 1:30 am UTC.

20. All these calls came from a different number making it impossible for Plenty to block or prevent them.

21. Each call was initiated by Hilton Grand to Plenty's number, 509-701-5723.

22. The purpose of these calls was to market available dates for potential reservations.

23. These calls were made despite Plenty's stop request on February 10, 2026.

24. Plenty is the user of the cell phone number 509-701-5723. She has been the user of 509-701-5723 for at least twenty years. Plenty uses this number for personal use. She uses it at home and wherever she goes. She is the sole user of the number and does not use it for any business.

25. Plenty personally registered her number 509-701-5723 on the National Do Not Call Registry on November 2, 2012, to stop unwanted and

unsolicited calls.

26. Plenty is not alone in her experience. For years, consumers have complained about Hilton Grand's unethical "Package Scam" and illegal calling practices. One consumer wrote that they had asked to be put on the do-not-call list and kept getting calls, and that "[…] Is there anyone I can contact to stop this before its gets more out of control?" Another wrote: "Starting yesterday I started getting 5 calls a day from HGVC trying to get me to come to Orlando, San Diego, or Vegas for a weekend stay to try to sell me a timeshare. […]" A third described "relentless robocalls—multiple times daily without identification or messages" followed by a presentation that "lasted nearly FIVE HOURS." A fourth wrote: "Representatives from Hilton Hotel Vacations are calling me 17 times a day because I won't sign up. They have been rude, refuse to take my phone number off their list and now harass me with multiple calls every day." [Each quotation is cited in the filing to a public consumer forum or review site.]

27. Hilton Grand's calls have annoyed and invaded the privacy of Plenty and the class members, intruded upon their seclusion, and negatively impacted their enjoyment and use of their phones.

# LEGAL STANDARD

28. Do Not Call Procedures. "No person or entity shall initiate… any call for telemarketing purposes to a residential telephone subscriber unless such person or entity has instituted procedures for maintaining a list of persons who request not to receive such calls." 47 C.F.R. § 64.1200(d). Telemarketers "must honor a residential subscriber's do-not-call request." *Id.* at 64.1200(d)(3).

# CLASS ACTION ALLEGATIONS

29. Plenty brings this action on behalf of herself, and a class of persons similarly situated.

30. Plenty proposes the following class: The Do Not Call Class: All persons in the United States, (1) to whom Hilton Grand initiated, or caused to be initiated, more than one telephone call, (2) marketing Hilton Grand's hotel rooms or services, (3) after receiving a do not call request, (4) within the last four years prior to the filing of this action through the date of class certification. Pursuant to Federal Rules of Civil Procedure 23(b)(3), Plenty brings this action on behalf of the Class.

31. The Class likely exceeds 10,000 members.

32. As a result, joinder is impracticable.

33. On information and belief, last year Hilton Grand made more than one million calls to numbers after receiving a stop request.

34. On information and belief, Hilton Grand has records with

annotations, notes, codes, or similar designation that indicate Hilton received a stop request.

35. Questions of law and fact common to the class include whether Hilton Grand initiated the calls, whether the calls were placed after a consumer's stop request, whether the calls were to cellular telephones, and whether the calls were made knowingly and willfully.

36. Plenty's claims are typical of the class because they arise out of the same conduct by Hilton Grand and are based on the same legal theory under the TCPA.

37. Plenty is an adequate representative because her interests do not conflict with the class, and she will fairly represent the interest of the class. Plaintiff's counsel also has no conflict and is experienced in TCPA class actions.

38. The questions common to the class predominate over individualized questions.

39. A class is superior to individual suits because it saves judicial resources, promotes consistency and efficiency, provides a forum for small claimants, and deters illegal activities. Class members prosecuting separate actions is unlikely because of the time and expense required. Damages are statutory and straightforward. Notice can be provided by mail or other means. There is no difficulty in managing this case as a class.

# FIRST CAUSE OF ACTION

## Failure to Honor Opt-Out Requests

## (On Behalf of Plaintiff and the Do Not Call Class)

40. Hilton Grand violated 47 C.F.R. § 64.1200(d) by making, or causing to be made, telemarketing calls to Plenty and the Do Not Call Class without instituting procedures for properly maintaining a list of persons who request not to receive such calls.

41. Plenty and members of the Do Not Call Class have been damaged and are entitled to an award of $500 in statutory damages for each violation. 47 U.S.C. § 227(c)(5).

42. The court should award $1,500 in statutory damages for each violation because the violations were knowing and willful. *Id.*

# RELIEF REQUESTED

43. Plenty respectfully requests that the Court grant Plenty and all class members the following relief against Hilton Grand:

A. Certification of the proposed class;

B. Appointment of Melissa Plenty as class representative;

C. Appointment of undersigned counsel as class counsel;

D. An award of damages to Plenty and class members, as allowed by law;

E. An award of fees, costs, and interest, as allowed by law; and

F. Orders granting such other relief as the Court deems necessary, just, and proper.

## JURY DEMAND

44. Plenty requests a jury trial as to all claims of the Complaint so triable.

DATED June 16, 2026

Respectfully submitted,

The HQ Firm, P.C.

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